No. 26-1252

IN THE
UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT

NETCHOICE,
Plaintiff-Appellee,
v.
JAY JONES, IN HIS OFFICIAL CAPACITY AS ATTORNEY GENERAL OF THE COMMONWEALTH OF VIRGINIA,
Defendant-Appellant.

On Appeal from the United States District Court for the Eastern District of Virginia, No. 1:25-cv-02067

OPENING BRIEF OF APPELLANT

JAY JONES
TILLMAN J. BRECKENRIDGE
TRISTON C. O'SAVIO
Office of the Attorney General
202 North Ninth Street

Richmond, Virginia 23219
(804) 786-2071 – Telephone
SolicitorGeneral@oag.state.va.us
Counsel for Defendant-Appellant

BENJAMIN L. HATCH
ERIN B. ASHWELL
JOHN D. ADAMS
McGuireWoods LLP
800 East Canal Street
Richmond, VA 23219
T: 804.775.1002

TABLE OF CONTENTS

Page

INTRODUCTION.....

ISSUES PRESENTED.....

JURISDICTIONAL STATEMENT.....

STATEMENT.....

A. Social media platforms' addictive features create a youth public health crisis.....

STANDARD OF REVIEW.....

SUMMARY OF ARGUMENT.....

ARGUMENT.....

I. A preliminary injunction is an extraordinary remedy that places the burden on the plaintiff to show entitlement to the injunction.....

II. The district court erred in concluding NetChoice was likely to succeed on the merits.....

A. The district court misapplied recent Supreme Court precedent in evaluating Plaintiffs' facial challenge.....

1. The district court applied the wrong standard.....

III. The district court erred in concluding that the remaining preliminary injunction factors favored NetChoice.....

CONCLUSION.....

REQUEST FOR ORAL ARGUMENT.....

TABLE OF AUTHORITIES

Cases: **Page(s)**

Abbott v. Perez,
585 U.S. 579 (2018).....

E.K. by & through Keeley v. Department of Defense Education Activity,
807 F. Supp. 3d 517 (E.D. Va. 2025).....

Free Speech Coalition, Inc. v. Paxton,
606 U.S. 461 (2025).....

Ginsberg v. New York,
390 U.S. 629 (1968).....

Maryland v. King,
567 U.S. 1301 (2012).....

Miranda v. Garland,
34 F.4th 338 (4th Cir. 2022).....

Moody v. NetChoice, LLC,
603 U.S. 707 (2024).....

Munaf v. Geren,
553 U.S. 674 (2008).....

Pierce v. North Carolina State Board of Elections,
97 F.4th 194 (4th Cir. 2024).....

Trump v. CASA, Inc.,
606 U.S. 831 (2025).....

Washington State Grange v. Washington State Republican Party,
552 U.S. 442 (2008).....

Statutes:

28 U.S.C. § 1292(a)(1).....

Va. Code § 59.1-584.....

INTRODUCTION

Attempting to squeeze a novel case into distinguishable precedent, the district court lost sight of first principles and enjoined a carefully and narrowly tailored law that imposes a minor temporary burden on speech. Virginia passed a law requiring social media companies serving Virginia's minors under 16 to limit their use to one hour per day unless a parent changes the setting. So, the burden on the social media company is to create a parental control with a one-hour default, or if it already has parental controls, change the default from unlimited to one hour (and, if it chooses, geofencing so that it operates only in Virginia). NetChoice claims its members already have parental controls, so it is just a matter of changing the default setting—not much burden at all. The burden on the underage user is to get mom or dad or a guardian to change the one-hour default if the minor wants to use the platform more than an hour a day. The burden on an adult user is to engage in age verification—a burden the Supreme Court already has determined does not warrant strict scrutiny. These minor burdens should not render a law unconstitutional—particularly when the court found Virginia had established a compelling state interest.

[*Paragraph omitted from this transcription.*]

NetChoice, an association of social media companies, brought a facial, pre-enforcement First Amendment challenge to the Parental Control Provision. Its challenge was devoid of facts and left unrebutted the Commonwealth's evidence of social media's harm to Virginia's children, which the district court found sufficient to establish that Virginia had a compelling state interest. And yet, the district court preliminarily enjoined Virginia's Attorney General from enforcing this much-needed statute.

[*Two paragraphs omitted from this transcription.*]

Consistent with several other Circuits' recent decisions, this Court should vacate the preliminary injunction and remand.

ISSUES PRESENTED

1. Did the district court err in concluding that NetChoice was likely to establish that Virginia's Parental Control Provision violates the First Amendment?
2. Did the district court err in weighing the public interest, the balance of equities, and irreparable harm against Virginia?

JURISDICTIONAL STATEMENT

NetChoice invoked the district court's jurisdiction under 28 U.S.C. § 1331. J.A. 13. On February 27, 2026, the district court entered a preliminary injunction, J.A. 320, and the Commonwealth noticed an appeal from that order on March 3, 2026, J.A. 321. This Court has jurisdiction under 28 U.S.C. § 1292(a)(1).

STATEMENT

A. Social media platforms' addictive features create a youth public health crisis

Social media platforms' features make social media addictive to children. J.A. 126. Their complex algorithms customize each user's feed, and then employ autoplay and infinite scrolling to ensure that users never reach the end of those feeds. J.A. 127. And they send out push notifications and other forms of public validation, such as likes and shares, that keep users coming back for more. J.A. 127, 133.

[*Paragraph omitted from this transcription.*]

The impacts of this addiction are severe. Children who spend too much time on social media suffer from "loss of sleep," higher "obesity rates," impaired "cognitive function," and lower "academic performance." J.A. 174; *see also* J.A. 133.

[*Brief pages 7–17 are omitted from this transcription: Statement Parts B through G.*]

STANDARD OF REVIEW

The grant of a preliminary injunction is reviewed for abuse of discretion, but legal conclusions are reviewed "de novo." *Pierce v. N.C. State Bd. of Elections*, 97 F.4th 194, 210 (4th Cir. 2024).

SUMMARY OF ARGUMENT

In granting the preliminary injunction, the district court made three fundamental errors on likelihood of success, each warranting vacatur of the preliminary injunction.

First, the district court misconstrued the pre-enforcement facial challenge standard. Despite the Supreme Court's recent reminder in *Moody v. NetChoice, LLC*, 603 U.S. 707, 724–26 (2024), the district court declined to engage with the Parental Control Provision's full scope or to weigh its constitutional versus unconstitutional applications, instead focusing on select hypotheticals. In doing so, the court categorically enjoined Virginia's nuanced statute without parsing its many applications that impose only minimal and incidental burdens on speech. Had the district court conducted the proper analysis, it would

have recognized that many (if not all) of the Provision's applications are constitutional, which is fatal to NetChoice's facial challenge.

[*Paragraph omitted from this transcription.*]

Third, in concluding that the Parental Control Provision is insufficiently tailored, the district court distorted both the intermediate and strict scrutiny standards. Missing the Supreme Court's guidance in *Free Speech Coalition, Inc. v. Paxton*, 606 U.S. 461 (2025), the district court demanded that the Provision exactly fit the problem at hand. But the Provision is more than sufficiently tailored to survive intermediate scrutiny. The one-hour adjustable limit targets social media addiction and imposes only incidental hurdles to accessing social media. And contrary to the district court's suggestion, even strict scrutiny would not limit Virginia to the tools that platforms have voluntarily provided in protecting its children, which would leave the Commonwealth with no effective way to protect children.

Having incorrectly resolved the merits, the district court then neglected the other preliminary injunction factors, including Virginia's and the public's overwhelming—indeed, compelling—interest in protecting children. The Parental Control Provision became effective on January 1, 2026, and the Attorney General began enforcement efforts.

The preliminary injunction paused those efforts, leaving the Commonwealth's children at the mercy of the platforms. Virginia and its children suffer irreparable harm each day that the Commonwealth is unable to enforce the Provision. That significant injury is not outweighed by the purported First Amendment harms that worry NetChoice. The Provision enables both children and social media platforms to convey whatever content they desire in the amount of time that parents permit their children to access the platform.

ARGUMENT

I. A preliminary injunction is an extraordinary remedy that places the burden on the plaintiff to show entitlement to the injunction

A preliminary injunction is an "extraordinary and drastic remedy," and is "never awarded as of right"—it is the "exception," not the "rule." *Munaf v. Geren*, 553 U.S. 674, 689–90 (2008) (cleaned up). Plaintiffs seeking a preliminary injunction must show that: (1) they are "likely to succeed on the merits," (2) they are "likely to suffer irreparable harm in the absence of preliminary relief," (3) "the balance of equities tips in [their] favor," and (4) "an injunction is in the public interest." *Miranda v. Garland*, 34 F.4th 338, 358 (4th Cir. 2022).

A plaintiff's "failure to show any one of the relevant factors mandates denial of the preliminary injunction." *E.K. by & through Keeley v. Dep't of Def. Educ. Activity*, 807 F. Supp. 3d 517, 530 (E.D. Va. 2025) (cleaned up). Because NetChoice is not likely to succeed on the merits and the balance of equities and public interest strongly favor the Commonwealth, this Court should vacate the district court's order.

II. The district court erred in concluding NetChoice was likely to succeed on the merits

A. The district court misapplied recent Supreme Court precedent in evaluating Plaintiffs' facial challenge

1. The district court applied the wrong standard

In a facial challenge under the First Amendment, the hurdle to obtain a preliminary injunction is particularly high. Unlike an as-applied challenge, where an individual seeks to prevent the law from being applied to him, in a facial challenge, the plaintiff attempts to invalidate the law wholesale and prevent it from applying to anyone. "Claims of facial invalidity often rest on speculation about the law's coverage and its future enforcement," *Moody v. NetChoice, LLC*, 603 U.S. 707, 723 (2024) (cleaned up), risking "premature interpretation of

statutes on the basis of factually barebones records," *Wash. State Grange v. Wash. State Republican Party*, 552 U.S. 442, 450 (2008) (cleaned up).

[*Brief pages 22–52 are omitted from this transcription: Argument Parts II.A.2 through II.C.3.*]

III. The district court erred in concluding that the remaining preliminary injunction factors favored NetChoice

The Commonwealth, in contrast, suffers irreparable harm from the district court's injunction, because it is currently prevented from enforcing its bipartisan and unanimously adopted statute protecting its children. The Provision went into effect on January 1, 2026, but social media platforms declined to comply. Before the preliminary injunction, the Attorney General sent compliance letters to several platforms. *See* Va. Code § 59.1-584(A). Those enforcement efforts are now at a standstill. Preventing Virginia from enforcing its law "clearly inflicts irreparable harm on the [Commonwealth]." *Abbott v. Perez*, 585 U.S. 579, 602–03 & n.17 (2018). Indeed, "any time a State is enjoined by a court from effectuating statutes enacted by representatives of its people, it suffers a form of irreparable injury." *Trump v. CASA, Inc.*, 606 U.S. 831, 861 (2025) (quoting *Maryland v. King*, 567 U.S. 1301, 1303 (2012)

(Roberts, C. J., in chambers)). And this is not just any law. The Provision is intended to serve one of the Commonwealth's most important responsibilities—protecting its children. *See Ginsberg v. New York*, 390 U.S. 629, 640 (1968) (recognizing the "transcendent interest in protecting the welfare of children" (cleaned up)).

Platforms' concerns for their bottom lines do not outweigh Virginia's duty to protect its children or the public's interest in the prompt execution of a democratically enacted law protecting the Commonwealth's most vulnerable.

CONCLUSION

This Court should vacate the district court's preliminary injunction and remand.

REQUEST FOR ORAL ARGUMENT

The Attorney General of Virginia respectfully submits that oral argument would assist this Court in deciding the constitutional and other consequential questions that this case presents about Virginia's ability to empower parents to protect their children from an unprecedented youth public health crisis.

Respectfully submitted,

/s/ Tillman J. Breckenridge

TILLMAN J. BRECKENRIDGE

Solicitor General

Office of the Attorney General

202 North Ninth Street, Richmond, Virginia 23219

(*804*) *786-2071*

SolicitorGeneral@oag.state.va.us

CERTIFICATE OF COMPLIANCE

Pursuant to Federal Rule of Appellate Procedure 32(a)(7)(B), I certify that this brief is proportionately spaced and contains 1,523 words excluding parts of the document exempted by Rule 32(f).

/s/ Tillman J. Breckenridge
TILLMAN J. BRECKENRIDGE

CERTIFICATE OF SERVICE

I certify that on , the Opening Brief of Appellant was served on all parties or their counsel of record through the CM/ECF system.

/s/ Tillman J. Breckenridge